



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 29 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9491
(THIRD REVISION)

EXPIRATION DATE: November 20, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: E.I. du Pont de Nemours & Company, Inc.
Wilmington, Delaware

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain compressed gases in DOT specification 3AL cylinders. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302 and 173.304..
5. BASIS: This exemption is based on the application of E.I. du Pont de Nemours & Company, Inc., dated December 8, 1998, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hexafluoroethane, compressed or Refrigerant gas, R 116	2.2	UN2193	n/a
Trifluoromethane or Refrigerant gas, R 23	2.2	UN1984	n/a

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7. PACKAGING AND SAFETY CONTROL MEASURES: Packagings prescribed are DOT Specification 3AL cylinders. The liquid portion of trifluoromethane may completely fill the cylinder at or below 130°F, provided the pressure at the critical temperature does not exceed one and one-fourth times the service pressure.

Minimum cylinder service pressures and maximum filling densities are as follows:

	<u>Trifluoromethane</u>	<u>Hexafluoroethane</u>
	<u>R23</u>	<u>R116</u>
Cylinder service pressure	1800	1800
Maximum filling density (%)	84.4	112.0
Pressure at 70°F (psig)	605	970
Pressure at 130°F (psig)	2045	2240

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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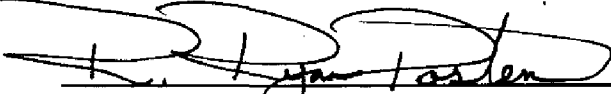
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

1/29/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

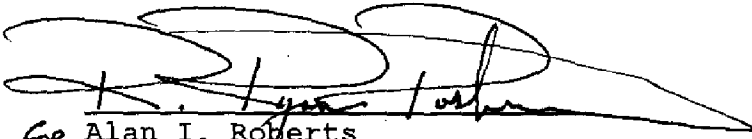
Dist: FHWA, FAA, FRA, USCG
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Company Name City/State	Applica- tion Date	Issue Date	Expiration Date
Air Products and Chemicals, Inc. Allentown, PA	10/7/98	12/9/98	11/20/2000
BOC Gases, Inc. Murray Hill, NJ	12/11/98	1/29/99	11/20/2000
Matheson Gas Products East Rutherford, NJ	1/27/99	2/1/99	11/20/2000


for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety